

PART I.

CONCERNING the first, I well remember that mr. *Garew, Pasch. 1. Jacobi*, being produced *ore tenus* for an audacious part in shutting up his parish-church-door, denying the Common Prayer to be used according to the form established in the reign of queen Elizabeth, did, at his defence of the crime, deliver into court that part of *Magna Charta*, *Nullus liber homo capiatur vel imprisonetur aut disseisietur de libero tenemento suo vel de libertatibus vel liberis consuetudinibus suis, vel utlagetur vel exuleter aut aliquo modo distruatur, nec super eum ibimus nec super eum mittemus nisi per legale iudicium parium suorum, vel per legem terræ*. But the grave lord keeper *Egerton*, well weighing that it was not only necessary to proceed to the censure of the gentleman at that time, but to give satisfaction to the world that the proceedings in that kind were just and legal, did learnedly declare the true meaning of that law, shewing the disjunctive *per legale iudicium parium suorum*, which was by indictment, or some writ original, *vel per legem terræ*.

AND that the law of England had always as well an extraordinary and expeditious court to conserve the peace of the kingdom, as an ordinary form of prosecution, where the bleeding state required not speedy remedy; and for the course of calling men to answer to a suggestion in that court by privy seal or *subpœna*, and proceeding thereupon in the antient form; mr. *Keeble, in temp. H. 7.* in his reading upon this law plainly declareth, that a privy seal is in the nature of an original writ, and so that course of proceeding not dissonant from the act of parliament.

THESE judicial opinions, both of antient and modern times, together with the continual usage in the reign of all the kings of this land in succession; and that the king, who is the fountain of all justice, must necessarily, by the law, have power to execute justice himself, which he doth most properly in this court, as shall be hereafter declared at large; shall be sufficient to satisfy